

Special Notice

SUBJECT* MIM Maestro License Software Services for the VA Philadelphia Medical Center

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	18711
SOLICITATION NUMBER*	36C24425Q0423
RESPONSE DATE/TIME/ZONE	03-07-2025 15:00 EASTERN TIME, NEW YORK, USA
ARCHIVE	15 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	DA10
NAICS CODE*	513210
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network Contracting Office 4 1111 East End Boulevard Wilkes Barre PA 18711
POINT OF CONTACT*	Jami Cade Contract Specialist Jami.Cade@va.gov 5627662222

ADDITIONAL INFORMATION

AGENCY'S URL	https://www.va.gov/
URL DESCRIPTION	Department of Veterans Affairs
AGENCY CONTACT'S EMAIL ADDRESS	Jami.Cade@va.gov
EMAIL DESCRIPTION	Contract Specialist - Department of Veterans Affairs

DESCRIPTION

NOTICE OF INTENT TO SOLE SOURCE

The Department of Veterans Affairs (VA), Network Contracting Office 4 (NCO4), intends to award a sole source Firm-Fixed-Price Contract to MIM Software INC., for the provision of MIM License Software Services at the VA Philadelphia Medical Center.

This contract action is for services for which the Government intends to negotiate with only one source under the authority of FAR 13.5. Interested parties may identify their interest and capability in response to this notice. The North American Industry Classification System (NAICS) for this requirement is 513210 with a small business size standard of \$47.0 million.

***= Required Field**

Special Notice

Special Notice

THIS NOTICE OF INTENT IS NOT A REQUEST FOR COMPETITIVE QUOTATIONS. Responsible sources may identify their interest by submitting capability information by 3:00 P.M., EST, on Friday, March 7th, 2025, in order to establish the ability of the source to meet this requirement.

A determination by the Government not to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. Information received will normally be considered solely for the purpose of determining whether to conduct a competitive procurement.

The Government will not be responsible for any costs associated with the preparation of responses to this notification.

All inquiries and submittals must be sent via email to Jami Cade, Contract Specialist, at Jami.Cade@va.gov. Telephone inquiries will not be accepted.

Special Notice

STATEMENT OF NEED

MIM MAESTRO

RADIATION ONCOLOGY

CORPORAL MICHEAL J. CRESCENZ VA MEDICAL CENTER

3900 WOODLAND AVENUE

PHILADELPHIA, PA 19104

BACKGROUND: The Radiation Oncology Department of the Corporal Michael J. Crescenz VA Medical Center (CMCVAMC) has a requirement for a product purchase with MIM Software to provide MIM Maestro Software License Subscription which provides a comprehensive set of oncology tools that are not available in standard treatment planning systems to include: integration of Positron emission tomography(PET) images with the treatment planning computerized tomography (CT) for consistent contouring of lesions and deform multiple doses between patient scans to get an accurate reading of patient dose distribution. The software has the ability to perform rigid and deformable registrations of images, CT MRI, PET, and CBCT. MIM Maestro software can also deform contours from 1 modality to another and also create sum doses which can also be deformed from 1 modality to another. The software also has QA tools for addressing the quality of the deformation. The system is implemented at the Hospital of the University of Pennsylvania Hospital which is helpful for staff that cover the Radiation Oncology Department at Corporal Michael J. Crescenz VA Medical Center. MIM Maestro would be used for initial image registration, and summation of dose from previous records and contouring. The subscription would also give Radiation Oncology access to MIM Assistant which can function as an imaging server for Mobile MIM. MIM Assistant can access patient studies with fast searching and viewing while keeping data within the local network. In addition, the MIM license would provide access to Contour Protégé AI., which is a computer program developed by MIM Software that gives a baseline set of contour images which can be easily and quickly manipulated by a Dosimetrist. This software is designed to produce meticulous outlines of the prostate and normal structures to aid in treatment. This technology was designed to streamline the creation of radiation oncology treatment plans and the review of all associated images from multiple modalities. The Radiation Oncology department has utilized MIM Maestro software subscription for the period of performance 02/01/2024 to 01/31/2025 and would like to continue using the MIM software. The contract number for that purchase was 36C24424P0247.

SCOPE: The contractor shall provide the following services:

Access to the MIM Maestro Software License, and Virtual Training on Microsoft Teams will be provided between the hours of 7:30 am to 4:00 pm Monday thru Friday. Maintenance, and patches for the MIM Software will be completed by CMCVAMC's bio medical engineer department (Bio-Med). Vendor must contact Bio-Med if patches may need to be applied to the MIM Maestro software. MIM Site Implementation Specialists will provide training for the software virtually on Microsoft Teams. These services shall be available for approximately (1) year, and (1) day for up to (10) hours per day. Live support will be provided virtually by MIM's software support team Monday thru Friday from 7:30 pm to 4:00 pm.

SCHEDULE FOR DELIVERABLES

1. The contractor shall complete renewal of software licensees within 15 days after receipt of purchase order.
2. If for any reason the scheduled time for a deliverable cannot be met, the contractor is required to explain why (include the original deliverable due date) in writing to the COR and CO, including a firm commitment of when the installation will be completed.

Special Notice

3. This notice to the COR and CO shall cite the reasons for the delay, and the impact on the overall project.
4. The CO will then review the facts and issue a response in accordance with applicable regulations.

CHANGES TO STATEMENT OF NEED:

Any changes to this SON shall be authorized and approved only through written correspondence from the CO. A copy of each change will be kept in a project folder along with all other products of the project. Costs incurred by the contractor through the actions of parties other than the CO shall be borne by the contractor.

ITEM NUMBER	DESCRIPTION OF SUPPLIES	QUANTITY	UNIT PRICE	TOTAL
1.1	Contour ProtégéAI+ Subscription	2	EA	
	MIM Maestro Department Solution	2	EA	
	Contour ProtégéAI+ Implementation Services	1	EA	

VA HANDBOOK 6500.6 MARCH 12, 2010 APPENDIX C C-2 3. VA INFORMATION CUSTODIAL LANGUAGE a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1). b. VA information should not be co-mingled, if possible, with any other data on the contractors/subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VA's information is returned to the VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on site inspections of contractor and subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements. c. Prior to termination or completion of this contract, contractor/subcontractor must not destroy information received from VA, or gathered/created by the contractor in the course of performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management and its Handbook 6300.1 Records Management Procedures, applicable VA Records Control Schedules, and VA Handbook 6500.1, Electronic Media Sanitization. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the VA Contracting Officer within 30 days of termination of the contract. d. The contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security

Special Notice

laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract. e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed. C-2

MARCH 12, 2010 VA HANDBOOK 6500.6 APPENDIX C C-3 f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold C-3

VA HANDBOOK 6500.6 MARCH 12, 2010 APPENDIX C C-6 (3) Include this Privacy Act clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, or operation of such a SOR. h. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a SOR on individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a SOR on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a SOR on individuals to accomplish an agency function, the contractor/subcontractor is considered to be an employee of the agency. (1) "Operation of a System of Records" means performance of any of the activities associated with maintaining the SOR, including the collection, use, maintenance, and dissemination of records. (2) "Record" means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and contains the person's name, or identifying number, symbol, or any other identifying particular assigned to the individual, such as a fingerprint or voiceprint, or a photograph. (3) "System of Records" means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual. i. The vendor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as "Systems"), throughout the life of this contract and any extension, warranty, or maintenance periods. This includes, but is not limited to workarounds, patches, hotfixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the vendor anywhere in the Systems, including Operating Systems and firmware. The vendor shall ensure that Security Fixes shall not negatively impact the Systems. j. The vendor shall notify VA within 24 hours of the discovery or disclosure of successful exploits of the vulnerability which can compromise the security of the Systems (including the confidentiality or integrity of its data and operations, or the availability of the system). Such issues shall be remediated as quickly as is practical, but in no event longer than ____ days. k. When the Security Fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the vendor will provide written notice to the VA that the patch has been validated as not affecting the Systems within

Special Notice

10 working days. When the vendor is responsible for operations or maintenance of the Systems, they shall apply the Security Fixes within ____ days. C-6

MARCH 12, 2010 VA HANDBOOK 6500.6 APPENDIX C C-7 l. All other vulnerabilities shall be remediated as specified in this paragraph in a timely manner based on risk, but within 60 days of discovery or disclosure. Exceptions to this paragraph (e.g. for the convenience of VA) shall only be granted with approval of the contracting officer and the VA Assistant Secretary for Office of Information and Technology. 5. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE

a. For information systems that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities, contractors/subcontractors are fully responsible and accountable for ensuring compliance with all HIPAA, Privacy Act, FISMA, NIST, FIPS, and VA security and privacy directives and handbooks. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The contractor's security control procedures must be equivalent to those procedures used to secure VA systems. A Privacy Impact Assessment (PIA) must also be provided to the COTR and approved by VA Privacy Service prior to operational approval. All external Internet connections to VA's network involving VA information must be reviewed and approved by VA prior to implementation. b. Adequate security controls for collecting, processing, transmitting, and storing of Personally Identifiable Information (PII), as determined by the VA Privacy Service, must be in place, tested, and approved by VA prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of VA. These security controls are to be assessed and stated within the PIA and if these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII. c. Outsourcing (contractor facility, contractor equipment or contractor staff) of systems or network operations, telecommunications services, or other managed services requires certification and accreditation (authorization) (C&A) of the contractor's systems in accordance with VA Handbook 6500.3, Certification and Accreditation and/or the VA OCS Certification Program Office. Government-owned (government facility or government equipment) contractor-operated systems, third party or business partner networks require memorandums of understanding and interconnection agreements (MOU-ISA) which detail what data types are shared, who has access, and the appropriate level of security controls for all systems connected to VA networks. d. The contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this assessment must be provided to the VA contracting officer and the ISO for entry into VA's POA&M management process. The contractor/subcontractor must use VA's POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes approved by the government. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by VA officials, including the VA Office of Inspector General. The physical security aspects associated with contractor/subcontractor activities must also be subject to such assessments. If major changes to the system occur that may C-7

VA HANDBOOK 6500.6 MARCH 12, 2010 APPENDIX C C-8 affect the privacy or security of the data or the system, the C&A of the system may need to be reviewed, retested and re-authorized per VA Handbook 6500.3. This may require reviewing and updating all of the documentation (PIA, System

Special Notice

Special Notice

Security Plan, Contingency Plan). The Certification Program Office can provide guidance on whether a new C&A would be necessary. e. The contractor/subcontractor must conduct an annual self-assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COTR. The government reserves the right to conduct such an assessment using government personnel or another contractor/subcontractor. The contractor/subcontractor must take appropriate and timely action (this can be specified in the contract) to correct or mitigate any weaknesses discovered during such testing, generally at no additional cost. f. VA prohibits the installation and use of personally owned or contractor/subcontractor-owned equipment or software on VA's network. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW or contract. All of the security controls required for government furnished equipment (GFE) must be utilized in approved other equipment (OE) and must be funded by the owner of the equipment. All remote systems must be equipped with, and use, a VA-approved antivirus (AV) software and a personal (host-based or enclave based) firewall that is configured with a VA-approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-VA owned OE. g. All electronic storage media used on non-VA leased or non-VA owned IT equipment that is used to store, process, or access VA information must be handled in adherence with VA Handbook 6500.1, Electronic Media Sanitization upon: (i) completion or termination of the contract or (ii) disposal or return of the IT equipment by the contractor/subcontractor or any person acting on behalf of the contractor/subcontractor, whichever is earlier. Media (hard drives, optical disks, CDs, back-up tapes, etc.) used by the contractors/subcontractors that contain VA information must be returned to the VA for sanitization or destruction or the contractor/subcontractor must self-certify that the media has been disposed of per 6500.1 requirements. This must be completed within 30 days of termination of the contract. h. Bio-Medical devices and other equipment or systems containing media (hard drives, optical disks, etc.) with VA sensitive information must not be returned to the vendor at the end of lease, for trade-in, or other purposes. The options are: (1) Vendor must accept the system without the drive; (2) VA's initial medical device purchase includes a spare drive which must be installed in place of the original drive at time of turn-in; or (3) VA must reimburse the company for media at a reasonable open market replacement cost at time of purchase. C-8

MARCH 12, 2010 VA HANDBOOK 6500.6 APPENDIX C C-9 (4) Due to the highly specialized and sometimes proprietary hardware and software associated with medical equipment/systems, if it is not possible for the VA to retain the hard drive, then; (a) The equipment vendor must have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact; and (b) Any fixed hard drive on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be pre-approved and described in the purchase order or contract. (c) A statement needs to be signed by the Director (System Owner) that states that the drive could not be removed and that (a) and (b) controls above are in place and completed. The ISO needs to maintain the documentation. 6. SECURITY INCIDENT INVESTIGATION a. The term "security incident" means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The contractor/subcontractor shall immediately notify the COTR and simultaneously, the designated ISO and Privacy Officer for the contract of any known or suspected security/privacy incidents, or any

Special Notice

unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access. b. To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/subcontractor considers relevant. c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement. d. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other C-9

End of Document